

		the custodian of these documents. Plaintiff has sought to obtain the documents directly from Willkie. Plaintiff contends that there are thousands of non-privileged responsive documents in Wilkie's possession that have not been produced by either Defendant or Wilkie. Defendant has objected to Plaintiff's attempts to obtain the documents directly from Wilkie through a third-party subpoena. It is completely unclear to the court why thousands of non-privileged responsive documents are being withheld from production. This hearing is CONTINUED so that Plaintiff may also move to compel compliance with the third-party subpoena directed at Wilkie. The Court will set the hearing on the motion to compel compliance with the third-party subpoena for the same date as the continued hearing on this motion. <u>All counsel and third-party deponent shall all meet and confer in person, by telephone or by video conference regarding whether any potentially non-privileged documents regarding the Business Review and Risk Committee's investigation of Kiani have yet to be produced. Meet and confer efforts by written correspondence, email or text are not acceptable.</u> No later than 15 days before the continued hearing date, the Parties shall file a joint statement that identifies any remaining disputes regarding the adequacy of Masimo and/or Willkie's privilege log and/or the production of any yet-to-be produced documents. This joint statement is in addition to any reply briefing that may be filed on that date. Plaintiff Joe E. Kiani's Motion to Seal: Plaintiff Joe E. Kiani's Motion to Seal is DENIED. Moving Party has failed to identify an overriding interest that overcomes the right of public access to the material Plaintiff seeks to seal. The hourly rates and time spent on a motion to compel are routinely disclosed in the public record in conjunction with motions to compel discovery responses. Plaintiff shall provide notice of these rulings.
2	Brown vs. Irvine Public Schools Foundation 2025-01474076	Motion for Leave to File Amended Complaint Plaintiff Cheryl Brown's motion for leave to file a First Amended Complaint is granted. There is a strong policy favoring amendment of pleadings. "The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." <i>City of Torrance v. Southern California Edison Co.</i> (2021) 61 Cal.App.5th 1071, 1091. This liberal policy applies

		particularly with respect to a party’s initial complaint, and “it ordinarily constitutes an abuse of discretion to sustain a demurrer without leave to amend if there is a reasonable possibility that the defect can be cured by amendment.” (<i>Ibid.</i>) The court is not persuaded by <i>Moorer v. Noble L.A. Events, Inc.</i>, (2019) 32 Cal.App.5th 736. The holding of <i>Moorer</i> does not restrict standing to bring Private Attorney General Act (PAGA) claims or the ability to amend complaints to add such claims. Rather, it affects only the distribution of any penalties ultimately recovered. Brown shall e-file a copy of the proposed pleading for filing within three days. Brown to give notice.
3	CLAIRMONT vs. FORD MOTOR COMPANY 2025-01510533	Motion to Dismiss <i>Continued. See minute order dated 6/3/26.</i>
4	Chao vs. Air Combat USA, Inc. 2022-01258475	Motion to Be Relieved as Counsel <i>Continued. See minute order dated 5/19/26.</i>
5	Khuu vs. Fairmont North Tustin 2025-01515709	Demurrer to Complaint Defendant Fairmont North Tustin’s demurrer to the complaint of Aaden Khuu and Berry Phan is sustained in its entirety with ten days leave to amend. Fairmont to give notice.
6	Nava vs. Walt Disney Parks and Resorts U.S., Inc. 2026-01553496	Demurrer to Complaint <i>Off calendar. See notice filed 5/27/26.</i>
7	Resource Environmental vs. Griffin Structures 2025-01514398	Demurrer to Complaint <i>Off calendar. See noticed filed 5/21/26.</i>
8	Rume Medical Group, Inc vs. Lee M.D	Motion to Appear Pro Hac Vice (Two Motions) The applications by Kelly Kramer and Hiral D. Mehta to appear